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CHAPTER 21

BILATERAL DIALOGUE MECHANISM

ARTICLE 21.1

Scope, objective and principles

1. The Parties aim to enhance their cooperation and dialogue on matters of interest in their trade and investment relations, with a view to achieve shared goals in furthering their economic development and to maximise the use of opportunities for bilateral engagement, including through deliberations aiming to reach consensus, under this Agreement in order to facilitate bilateral trade and investment in a mutually beneficial way.
2. To this end, a bilateral dialogue mechanism (hereinafter referred to as "bilateral dialogue") is established, to enhance transparency, predictability, and cooperation on their respective regulatory environments, building on the objectives and principles in Chapter 19 [Good Regulatory Practices].
3. The bilateral dialogue shall not duplicate other means for dialogue, including the exchange of information and technical consultations, established in other Chapters of this Agreement. The Parties may jointly select from any of such means to address any bilateral trade or investment issues.

ARTICLE 21.2

Exchange of information

1. A Party may, through the CEPA Contact Points established pursuant to Article 24.6 , submit a request to the other Party for information¹ on that Party's existing or future measures that it considers of relevance for bilateral trade or investment relations between the Parties. The Party submitting such request shall include therein a substantiated reasoning that presents its underlying trade-related or investment-related considerations.
2. Within 15 days² from receipt of a request pursuant to paragraph 1, unless otherwise agreed by the Parties, the requested Party shall respond to the request as appropriate. The Parties may engage in an exchange of information on this basis.
3. The exchange of information pursuant to paragraph 2 shall be carried out with a view to seek a common understanding on the measure or measures covered in the request. It may be carried out in person, in writing, including through the submission of written questions and responses, or by any other means as agreed by the Parties. Unless otherwise agreed by the Parties, an exchange of information pursuant to paragraph 2 shall not exceed 30 days from the date of receipt of the response provided by the requested Party.

ARTICLE 21.3

Follow-up discussions

1. If, after the exchange of information conducted pursuant to paragraph 3 of Article 23.2 (Exchange of Information), the requesting Party referred to in paragraph 1 of Article 23.2 (Exchange of Information) has concerns that the measure or measures discussed thereunder may unduly restrict bilateral trade or investment, it may follow up on the exchange of information by submitting a proposal for a bilateral dialogue to seek a mutually acceptable outcome.

¹ For greater certainty, nothing in this paragraph shall oblige a Party to disclose drafts or documents that it has classified as confidential pursuant to its laws and regulations.

² For the purposes of this Chapter, the term "days" refers to working days.

2. A proposal submitted for a bilateral dialogue pursuant to paragraph 1 shall indicate the matter of interest and the trade- or investment-related concerns thereon and may include proposed solutions.
3. The submission of a proposal pursuant to paragraph 2 is without prejudice to the right of the Parties to hold further exchanges of information, seek or provide additional clarifications on the measure or measures concerned, and modify proposed solutions as applicable.

ARTICLE 21.4

Procedural elements

1. Following the submission of a proposal pursuant to Article 21.3 (Follow-up Discussions), the Parties shall make every effort to reach a mutually acceptable outcome, taking into account the elements specified under paragraph 2 and, where applicable, paragraph 3 of Article 21.3 (Follow-up Discussions).
2. The Parties shall enter into the bilateral dialogue in good faith, in person or by any other means of communication, without undue delay, within a timeframe agreed by the Parties.
3. If the bilateral dialogue takes place in person, the discussions thereunder shall take place in the European Union and Indonesia alternately, unless otherwise agreed.
4. The bilateral dialogue shall be conducted by representatives of the Parties, and co-chaired by a representative of each Party.
5. The bilateral dialogue shall be under the purview of the institutional body of this Agreement responsible for the subject matter of the measure or measures under discussion, and in accordance with that body's relevant procedures, unless otherwise agreed by the Parties. If the measure or measures under discussion do not fall within the remit of any of the institutional bodies of this Agreement, the bilateral dialogue shall be conducted pursuant to rules in this Chapter.

6. The Parties may agree to invite their relevant respective stakeholders, including those participating in the Domestic Advisory Groups established under Article 24.7 [(Domestic Advisory Groups) of Chapter (Institutional Provisions)], to meetings held during the bilateral dialogue.
7. The Parties may agree to modify the timeframe, place, and composition of representatives at any time during the bilateral dialogue.
8. The Parties shall consider any proposed solutions, in particular those that would support the objectives of this Agreement, including the facilitation of bilateral trade, and its implementation, and shall strive to reach a mutually acceptable outcome as referred to in paragraph 1 of Article 21.3 (Follow-up Discussions).
9. The mutually acceptable outcome may take the form of a recommendation to the Trade Committee, including with respect to relevant cooperation activities under this Agreement or other forms of implementation, or any other form the Parties may agree upon.

ARTICLE 21.5

Other provisions

1. The use of the bilateral dialogue with respect to a measure shall be without prejudice as to whether that measure is consistent with this Agreement.
2. This Chapter is without prejudice to the application of Chapter 22 (Dispute Settlement).
3. A Party shall use any information provided by the other Party through the discussions undertaken under this Chapter in Article 21.2 (Exchange of Information) and Article 21.3 (Follow-up Discussions) exclusively for the purposes of the mechanism provided in this Chapter.
4. For the purposes of application of this Chapter, each Party's Contact Points shall be those established pursuant to Article 24.6 [Contact Points (Institutional Provisions)].